



Procedure No: EXP202307898 (PS/00378/2023)

SANCTIONING PROCEDURE RESOLUTION

From the actions taken by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On 27/04/23, Mr. A.A.A. (hereinafter, the claimant) submitted a complaint to the Spanish Agency for Data Protection.

The complaint is directed against the entity ROUNDED TECHNOLOGIES, S.L., with CIF: B01673862 (hereinafter, the respondent), for the alleged violation of data protection regulations: Regulation (EU) 2016/679 of the European Parliament and of the Council, of 27/04/16, regarding the Protection of Natural Persons with regard to the Processing of Personal Data and the Free Movement of such Data (GDPR), Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD), and Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

The facts stated by the claimant are as follows:

"I downloaded the app 'Shop Buo', it did not appeal to me, and I uninstalled it the same day.

I started receiving commercial emails from the same company on March 11, 14 (2), and 15, 2023. I unsubscribed from the newsletter on March 15, 2023, through the link provided in the commercial email, and I received instant confirmation of the unsubscription.

To my astonishment, on April 27, 2023, I received another commercial email.

Then I accessed the website <https://www.shopbuo.com/politica-de-privacidad> and found the email hola@pulpo.club as the privacy contact, so before initiating this procedure, I sent an email to that address demanding the immediate cessation of commercial communications; however, I received an email indicating that the email address does not exist, which left me no choice but to file this complaint. I have observed that the website www.shopbuo.com does not have a legal notice, and moreover, the data protection email does not work."

Along with the complaint documents, the following documentation is attached:

- Copy of the "Privacy Policy" from the website www.shopbuo.com, (<https://www.shopbuo.com/politica-de-privacidad>), where the following can be read among other issues:

- o "(...) Contact us: Please do not hesitate to contact us if you have any questions. Via Email: hola@pulpo.club. Through this link: <https://shopbuo.com>.

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- Copy of the emails received by the claimant on 11/03/23 and 14/03/23, from the email address ***EMAIL.1@support.shopbuo.com containing advertising messages. In these emails, the following message can be read at the end:

- o "(...) Need help? Contact us. We would love for you to stay, but you can <> if you do not wish to receive more emails like this. For more information, visit: www.shopbuo.com

- Copy of the email received by the claimant on 15/03/23, sent from the email address services@support.shopbuo.com, containing the acknowledgment of receipt of having unsubscribed from the email and indicating that he will not receive any other email from "Buo."

- Copy of the email received on 27/04/23, from the email address hello@buo.so, containing advertising messages. In this email, the following message can be read at the end:

- o "(...) Need help? Contact us. We would love for you to stay, but you can <> if you do not wish to receive more emails like this. For more information, visit: www.shopbuo.com."

- Copy of the email sent on 27/04/23 from the claimant's email address to the email address hola@pulpo.club in which the following message can be read:

o “Hello, I unsubscribed on March 15 and I am still receiving emails; I would not like to file a complaint with the AEPD, so I give you a deadline of 3 days to confirm my unsubscription AGAIN and assure me that I will not receive any other email.”

- Copy of the response received on the same day, 27/04/23, from the email address “Mail Delivery Subsystem ” with the following message written in English (translated into Spanish): “Address not found. Your message was not delivered to hola@pulpo.club because the address could not be found or cannot receive mail.”

- Copy of the email received by the claimant on 10/05/23, from the email address hello@buo.so containing an advertising message. In this email, the following message can be read at the end:

o “(...) Need help? Contact us. We would love for you to stay, but you can <> if you do not wish to receive more emails like this. For more information, visit: www.shopbuo.com.”

SECOND: On 09/06/23, in accordance with the provisions of Article 65.4 of the LOPDGDD, this Agency forwarded the complaint to the respondent for analysis and to report, within one month, on what was stated in the complaint.

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The transfer, which was carried out in accordance with the provisions established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), as certified by the Electronic Notifications Service and Electronic Address, was sent to the respondent on 09/06/23 via the electronic notification service, “NOTIFIC@”, and was automatically rejected on 20/06/23.

Although the notification was validly carried out by electronic means, considering the procedure completed in accordance with the provisions of Article 41.5 of the LPACAP, a copy was sent by postal mail to the address indicated in the Central Commercial Registry as the registered office:

***ADDRESS.1, which was returned to sender on 26/07/23, with the message “unknown”.

THIRD: On 27/07/23, the Director of the Spanish Agency for Data Protection issued an agreement to admit the processing of the complaint filed, in accordance with Article 65 of the LPDGDD.

FOURTH: On 12/09/23, this Agency conducted the following due diligence checks regarding the indications included in the advertising emails:

a).- If the option <> is clicked, included in the advertising emails sent by the respondent, the following message appears written in English (translated into Spanish):

“Do you want to unsubscribe from our emails?

You will stop receiving our emails.

<>

Disclaimer: this email was sent via Crisp for the website: shopbuo.com

We are not responsible for any abuse of that website. We respect all email unsubscribe requests. If the website abuses your email inbox, please contact the website first. If you still receive emails after doing so, contact Crisp at: abuse@crisp.chat”

If the <> option is clicked, the following message appears written in English (translated into Spanish): “Unsubscribe from emails!

Understood! You will not receive any more emails. — Resubscribe?

Disclaimer: this email was sent via Crisp for the website: shopbuo.com

We are not responsible for any abuse of that website. We respect all email unsubscribe requests. If the website abuses your email inbox, please contact the website first. If you still receive emails after doing so, contact Crisp at: abuse@crisp.chat”

b).- If the website <https://www.shopbuo.com> is accessed, it is verified that, through the existing link at the top of the page <>, <https://www.shopbuo.com/soy-un-consumidor>, a QR code appears that allows the download of the app, “Shop Buo”.

It is observed that in the “Privacy Policy” of the website

<https://www.shopbuo.com/politica-de-privacidad>, if one wishes to contact the responsible party via the email indicated on the page (hola@pulpo.club), an instant response message is received that

indicates,

"Your message was not delivered to hola@pulpo.club because the address could not be found or cannot receive mail."

FIFTH: On 05/10/23, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), for the alleged violations of Article 21.1 of the LSSI, classified as "minor" in Article 38.4.d) of that regulation and Article 21 of the GDPR, classified in Article 83.5.b) of the aforementioned regulation.

In the opening agreement, it was determined that the sanction that could correspond, considering the existing evidence at that time and without prejudice to what might result from the instruction, would amount to a total of 2,500 euros (two thousand five hundred euros) in the case of the violation of Article 21 of the LSSI and 5,000 euros (five thousand euros) in the case of the violation of Article 21 of the GDPR. It was also warned that the alleged violations, if confirmed, could lead to the imposition of measures in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR. Furthermore, the respondent was informed that if they did not submit allegations to this initiation agreement within the stipulated period, it could be considered a proposal for resolution, as established in Article 64.2.f) of the LPACAP.

This initiation agreement, which was notified to the respondent in accordance with the provisions established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), was received on 06/10/23.

SIXTH: Once the aforementioned initiation agreement was notified in accordance with the provisions established in the LPACAP and the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received regarding the initiation of the file in this Agency.

Article 64.2.f) of the LPACAP -a provision of which the respondent was informed in the opening agreement of the procedure- establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the attributed responsibility,

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may be considered a proposal for resolution. In the present case, the agreement to initiate the sanctioning file determined the facts on which the accusation was based, the infringement of the LSSI attributed to the respondent, and the sanction that could be imposed. Therefore, considering that the respondent has not made any allegations against the agreement to initiate the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned agreement to initiate is considered in this case as a proposal for resolution.

In view of all that has been acted upon, the following facts are considered proven by the Spanish Agency for Data Protection in this procedure,

PROVEN FACTS

Unique: In the complaint letter, the complainant states that after uninstalling the "Shop Buo" app from their mobile phone, they began to receive commercial emails from the same company. They processed the unsubscribe request through the link included in the commercial email, receiving confirmation of having successfully unsubscribed. However, after that, they continued to receive new advertising emails from the same company, presenting the following documents to corroborate this:

- Copy of the emails received by the complainant on 11/03/23 and 14/03/23, from the respondent entity containing advertising messages.
- Copy of the email received by the complainant on 15/03/23, sent by the respondent entity, containing the acknowledgment of receipt of having unsubscribed from the email and indicating that they would not receive any further emails from "Buo."

- Copy of the email received on 27/04/23, from the address of the respondent entity containing advertising messages.
- Copy of the email sent on 27/04/23 by the complainant to the respondent entity requesting again the deletion of their data to stop receiving further advertising emails.
- Copy of the response received on the same day 27/04/23 from the email address "Mail Delivery Subsystem" with the following message written in English (translated into Spanish): "Address not found. Your message was not delivered to hola@pulpo.club because the address could not be found or cannot receive mail."
- Copy of the email received by the complainant on 10/05/23, from the respondent entity containing an advertising message.

LEGAL GROUNDS

I.

Competence.

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Regarding the advertising messages sent, the Director of the Spanish Agency for Data Protection is competent to resolve this Sanctioning Procedure, in accordance with the provisions of Article 43.1, second paragraph, of the LSSI. The fourth additional provision of the LOPDGDD establishes, regarding the "Procedure in relation to the competencies attributed to the AEPD by other laws," that: "The provisions in Title VIII and its implementing regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the competencies attributed to it by other laws."

Regarding the processing of personal data and the "Privacy Policy" of the website

<https://www.shopbuo.com>, the Director of the Spanish Agency for Data Protection is competent to resolve this procedure, by virtue of the powers that Article 58.2 of the GDPR recognizes to each Control Authority and, according to the provisions of Articles 47, 64.2, and 68.1 of the LOPDGDD.

II.

Summary of the facts:

According to the complainant, after downloading the "Shop Buo" app, they began to receive commercial emails from the company in question and after unsubscribing, through the link included in the emails and receiving confirmation of the unsubscription, they continued to receive advertising emails from the company. Following this, they accessed the "Privacy Policy" of the website <https://www.shopbuo.com> (<https://www.shopbuo.com/politica-deprivacidad>), and attempted to contact the person responsible through the email address provided for that purpose, hola@pulpo.club, but received an instant response informing them that this email address was not valid or did not exist.

III.-1

Classification of the infringement committed by sending commercial communications

The fact that the respondent sends advertising emails to the complainant after they have requested not to receive any more advertising constitutes a violation of the provisions established in Article 21 of the LSSI, which states the following:

"1. The sending of advertising or promotional communications by email or other equivalent electronic communication means that have not been previously requested or expressly authorized by the recipients is prohibited.

2. The provisions of the previous paragraph shall not apply when there is a prior contractual relationship, provided that the provider has lawfully obtained the contact details of the recipient and uses them to send commercial communications regarding products or services of its own company that are similar to those initially contracted with the client.

In any case, the provider must offer the recipient the possibility of opposing the processing of their data for promotional purposes through a

simple and free procedure, both at the time of data collection and in each of the commercial communications directed to you.

When communications have been sent by email, this medium must necessarily consist of the inclusion of an email address or another valid electronic address where this right can be exercised, and the sending of communications that do not include such an address is prohibited.”

III.-2

Sanction

The aforementioned infringement of Article 21 of the LSSI is classified as minor in Article 38.4.d) of said regulation, which qualifies as such, “The sending of commercial communications by email or other equivalent electronic means when the requirements established in Article 21 are not met and does not constitute a serious infringement.”

According to these criteria, it is deemed appropriate to impose a sanction of 2,500 euros (two thousand five hundred euros) for the infringement of Article 21 of the LSSI, for sending advertising messages to the complainant, having previously opposed it.

IV.-1

On the processing of personal data on the website and the “Privacy Policy”

It has been observed that in the “Privacy Policy” of the website

<https://www.shopbuo.com/politica-de-privacidad>, if one wishes to contact the person responsible for the site, through the email indicated on the page (hola@pulpo.club), an automatic response message is received indicating that this email address is incorrect or does not exist.

In this regard, the GDPR establishes in Article 21, “Right to object,” the following:

- “1. The data subject shall have the right to object at any time, on grounds relating to his or her particular situation, to the processing of personal data concerning him or her which is based on Article 6(1)(e) or (f), including profiling based on those provisions. The controller shall cease to process the personal data unless it demonstrates compelling legitimate grounds for the processing which override the interests, rights, and freedoms of the data subject, or for the establishment, exercise, or defense of legal claims.
2. When the processing of personal data is for direct marketing purposes, the data subject shall have the right to object at any time to the processing of personal data concerning him or her, including profiling to the extent that it is related to such marketing.
3. When the data subject objects to processing for direct marketing purposes, the personal data shall no longer be processed for such purposes.
4. At the latest at the time of the first communication with the data subject, the rights referred to in paragraphs 1 and 2 shall be explicitly mentioned to the data subject and shall be presented clearly and separately from any other information.
5. In the context of the use of information society services, and notwithstanding the provisions of Directive 2002/58/EC, the data subject may exercise his or her right to object by automated means using technical specifications.
6. When personal data are processed for scientific or historical research purposes or for statistical purposes in accordance with Article 89(1), the data subject shall have the right, on grounds relating to his or her particular situation, to object to the processing of personal data concerning him or her, unless the processing is necessary for the performance of a task carried out for reasons of public interest.”

That is, the data subject may exercise a series of rights regarding such data before the data controller, and therefore, the fact that the email address indicated by the website controller, hola@pulpo.club, to be able to contact him does not actually exist or cannot be accessed, constitutes a violation of Article 21 of the GDPR, also giving rise to the application of the corrective powers that Article 58 of the aforementioned Regulation grants to the Spanish Data Protection Agency.

IV.-2

Sanction

If confirmed, the non-compliance with the indicated provision could constitute an infringement classified under Article 83.5.b) of the GDPR, which under the heading “General conditions for the imposition of administrative fines” provides the following:

“Infringements of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount: (...) b) the rights of the data subjects under Articles 12 to 22.”

Regarding the limitation periods, Article 72.1.k) of the LOPDGDD establishes:

“1. In accordance with Article 83.5 of Regulation (EU) 2016/679, the following infringements shall be considered very serious and shall be subject to a limitation period of three years: those that constitute a substantial violation of the articles mentioned therein and, in particular, the following: (...) k) The obstruction or hindrance or repeated failure to address the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679.”

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In order to determine the administrative fine to be imposed, the provisions of paragraphs 1 and 2 of Article 83 of the GDPR must be observed, which state:

“1. Each supervisory authority shall ensure that the imposition of administrative fines under this Article for the infringements of this Regulation referred to in paragraphs 4, 9, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account: a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage and harm they have suffered; b) the intentionality or negligence in the infringement;

c) any measures taken by the controller or processor to mitigate the damage and harm suffered by the data subjects; d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32; e) any previous infringement committed by the controller or processor; f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement; g) the categories of personal data affected by the infringement; h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent; i) when the measures referred to in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, the compliance with such measures; j) adherence to codes of conduct pursuant to Article 40 or to certification mechanisms approved under Article 42, and k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

For its part, Article 76 “Sanctions and corrective measures” of the LOPDGDD provides:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account: a) The continued nature of the infringement. b) The connection of the infringer's activity with the performance of personal data processing. c) The benefits obtained as a consequence of the commission of the infringement. d) The possibility that the conduct of the affected

party could have induced the commission of the infringement. e) The existence of a merger by absorption after the commission of the infringement.”

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that cannot be attributed to the absorbing entity. f) The impact on the rights of minors. g) To appoint, when not mandatory, a data protection officer. h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.”

In accordance with the aforementioned provisions, for the purpose of determining the amount of the sanctions to be imposed in this case, it is considered appropriate to adjust the fine according to the following criteria:

- The scope or purpose of the data processing operation, as well as the affected interested parties (Article 83.2.a): In relation to the number of affected interested parties, all potentially affected users of the website are taken into account.

In light of the above, it is deemed appropriate to impose a sanction of 5,000 euros (five thousand euros) for the infringement of Article 21 of the GDPR.

IV.-3

Adoption of Measures

Once the infringements have been confirmed, it is necessary to impose on the reported party the obligation to adopt appropriate measures to align its actions with the regulations mentioned in this act, in accordance with the provisions of Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified timeframe...”.

The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

The text of this resolution establishes what the infringement committed has been and the facts that give rise to the violation of data protection regulations, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as it is the data controller who fully knows its organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

However, in this case, regardless of the above, it is necessary to require the reported party to make the necessary modifications to its website within one month and to provide a valid email address so that users can contact it and exercise, if they wish, their rights regarding data protection.

It is warned that failure to comply with the requirements of this agency may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning procedures.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection

RESOLVES:

FIRST: TO IMPOSE on the entity ROUNDED TECHNOLOGIES, S.L., with CIF: B01673862, the following fines:

- For infringement of Article 21 of the LSSI, classified in Article 38.4.d) of the aforementioned regulation, a fine of 2,500 euros (two thousand five hundred euros).
- For infringement of Article 21 of the GDPR, classified in Article 83.5.b) of the aforementioned regulation, a fine of 5,000 euros (five thousand euros).

SECOND: TO ORDER ROUNDED TECHNOLOGIES, S.L., that pursuant to Article 58.2.d) of the

GDPR, within one month from the notification of this act, it shall adjust its actions to the personal data protection regulations, to the extent expressed in the Legal Basis IV.-3. Within the same indicated timeframe, it must justify to this Spanish Agency for Data Protection the compliance with this requirement.

THIRD: TO NOTIFY this resolution to ROUNDED TECHNOLOGIES, S.L.

FOURTH: To warn the sanctioned party that it must fulfill the imposed sanction once this resolution becomes executive, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account

No. IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A.

Otherwise, collection will proceed in the executive period. Upon receipt of the notification and once it is executive, if the date of executive status falls between the 1st and 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second month following or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions established in Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Litigation Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Litigation Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronicaweb/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

Mar España Martí

Director of the Spanish Agency for Data Protection

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